

11 May 2023
Juror off sick

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Housekeeping

Thursday, 11 May 2023
(10.30 am)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, you will have been informed that there is a juror who has phoned in this morning to indicate that they are not well or fit enough to attend. The information is that it is vertigo, a condition from which the juror has suffered in the past and has had for some time.

She has seen her GP, has been referred to an ENT specialist, but has been told it is unlikely that she will have an appointment for 8 to 10 weeks; this was a few days ago. Well, we all know what the state of the -- the difficulty in obtaining and keeping appointments is at the moment. It's obviously non-urgent and therefore I think probably 8 weeks is optimistic to be honest, but we'll work on that basis.

She's indicated she won't be fit tomorrow. So we are -- that is the situation so far as this week is concerned. I think it may be that we are going to have to consider -- well, we're going to have to consider what we're to do and the question of the potential discharge of this particular juror I think should be considered.

MR JOHNSON: Yes. Well, it will have to be considered, my Lord, but equally, this particular juror, if it's the one I understand it to be, has been here faithfully pretty much every day.

MR JUSTICE GOSS: Exactly. There haven't been other -- well, there have been other issues, but they've been addressed and haven't resulted in any absences.

MR JOHNSON: Yes. Therefore, the condition insofar as it's a chronic condition is clearly one which doesn't impact on a frequent basis. I must say, my instinctive reaction would be to suggest, for consideration, that the jury be given a bit of latitude for today and tomorrow and if the issue hasn't resolved by Monday then it may be that the decision will be or the outcome of the decision will be obvious. But given the way it's -- we would submit, given the length of the case, given the

potential problems, if we can possibly hold on to all 12 jurors, we should.

MR JUSTICE GOSS: Mr Myers.

MR MYERS: That would seem the appropriate approach in the circumstances, my Lord. We would ask, if we don't sit tomorrow, could I ask that Ms Letby not be produced? We agree, given the investment of time in this day and the distance we still have to go, as no doubt your Lordship would regard wise, we don't want to rush to the loss of a juror if that can possibly be avoided.

MR JUSTICE GOSS: If it's any reassurance to you, that was the view I had provisionally formed, subject to any representations, that as far as today and tomorrow are concerned -- it will be confirmed with her later today that she is still of the view that she will not be fit tomorrow. What I don't want is the jurors who have come in today being brought in tomorrow, or not being brought in tomorrow when we may be able to proceed and being brought in -- so they are familiar with the arrangement about notification this afternoon.

So I think we'll do that and everyone will be informed, but we'll maintain contact with the absent juror and try and get a clear indication as soon as possible, certainly early afternoon.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: So that will minimise inconvenience.

MR JOHNSON: There is something going round and whatever it is has provoked in somebody on our team exactly these symptoms.

MR JUSTICE GOSS: There are a lot of infections, including the main virus where it all started 3 years ago.

MR JOHNSON: Yes, but this may not be the chronic problem for the juror at all, as a matter of fact, it may just be a coincidence.

MR JUSTICE GOSS: Exactly. Yes, all right. Thank you both very much indeed. What I'm going to do then now is -- I'm not going to have the jury brought into court for this particular purpose unless anyone suggests otherwise but I ask the usher to pass on the message. They will be aware that one of their number is absent. She is not well, they can be told if they already don't know that.

It is very unlikely she will be fit to attend tomorrow, but confirmation in relation to the possibility of sitting tomorrow will be given to them this afternoon in the usual way by phoning

in to confirm and that will be done as soon as possible, but in good time this afternoon.

So unless they are told to come in tomorrow this afternoon, they should not come in tomorrow and come in Monday morning. Thank you very much indeed.

One or two housekeeping matters that I wanted to discuss anyway. Mr Astbury, have you prepared the index that I requested?

MR ASTBURY: My Lord, yes, we have them for both bundles 1 and 2. I have made a suggestion to the defence about one of their documents, so subject to that, they are ready to be printed.

MR JUSTICE GOSS: Excellent, thank you very much. Can I just go through -- I may have some documents missing in my bundle 1 in relation to the agreed facts, so can I just check with you what agreed facts we have because I think I may be missing some?

MR ASTBURY: As it happens one of the other tasks has been to consolidate and paginate those agreed facts, so we were going to reproduce them in any event.

MR JUSTICE GOSS: Can I just see what I've got? I've got agreed facts 1 to 5 relating to Lord Justice Jackson's decision in writing.

MR ASTBURY: They should in fact be numbers 15 to 19 because we had some initial --

MR JUSTICE GOSS: Right, so they're 15 to 19, are they? All right. This is why I wanted to check with you.

Then I have section 4, "Pathology: [Baby A]".

MR ASTBURY: It should be 20 to --

MR JUSTICE GOSS: 20 to 25?

MR ASTBURY: Yes.

MR JUSTICE GOSS: Then the glossary?

MR ASTBURY: Yes.

MR JUSTICE GOSS: Then I have section 5, "Arrests", 26.

MR ASTBURY: "Interviews."

MR JUSTICE GOSS: "Seizures", 27, 28, 29 --

MR ASTBURY: Yes.

MR JUSTICE GOSS: -- and 30, 31. "Interviews", section 7, 32 onwards.

MR ASTBURY: Yes. And a table incorporated.

MR JUSTICE GOSS: Yes. Up to 36. Then I have section 8, "Telecommunications".

MR ASTBURY: Yes.

MR JUSTICE GOSS: Section 9, "Other exhibits" --

MR ASTBURY: Yes.

MR JUSTICE GOSS: -- to 60.

MR ASTBURY: Yes.

MR JUSTICE GOSS: Then I have 61, the contents of defence document, exhibit D27, entitled "Facebook searches by Lucy Letby are agreed".

MR ASTBURY: Yes.

MR JUSTICE GOSS: Is that it?

MR ASTBURY: That is it. It finishes with that particular agreed fact, which was added on the table.

MR JUSTICE GOSS: Number 61?

MR ASTBURY: Yes, but we have prepared a consolidated (inaudible: no microphone) the numbers running sequentially and paginated for the ease of the jury, so at some point we were proposing to invite the jury to accept those, transfer any notes they may have made on the originals, and ask the usher to take the others (inaudible: no microphone) just to keep everything together.

MR JUSTICE GOSS: Mr Myers, you're content that this be done, are you?

MR MYERS: We are. Just to confirm the section your Lordship doesn't have or didn't refer to is section 1, "Cheshire and Merseyside Neonatal Network", and that was agreed facts 1 through to 14, in fact. It covered background information regarding hospital --

MR JUSTICE GOSS: I don't know where that is.

MR MYERS: That's why the Dewi Evans agreed facts start at 15, so your Lordship requires 1 to 14. That section is not there.

MR JUSTICE GOSS: Thank you very much indeed, Mr Myers.

What I'll do is wait until I have the revised version and I'll work from that.

MR ASTBURY: That's yet to be shown to the defence.

MR JUSTICE GOSS: That can be done today or it can be shown to the defence and once that's agreed and formatted and everything, that can be available for whenever we sit again.

MR ASTBURY: Of course.

MR MYERS: I'm wondering whether -- it's a matter for your Lordship ultimately -- this would simply sit at the front of the agreed facts the jury have or whether they would transfer their notes across. I just wonder, is that a safe process, because then we have to dispose of paper with notes written on it and someone might lose them.

MR ASTBURY: Two sets is equally...

MR MYERS: We can work out how -- it may be better just to slot one lot in together and let them keep the notes they have got on the ones they have already written.

MR JUSTICE GOSS: That will be easier. We'll do that then.

Good, thank you very much.

That's all I wished to raise. There is, of course, the issue with Ms Moritz. I don't know whether you've made any progress after we last sat.

MEMBER OF THE PRESS: I did send a communication via Mr Worthington (inaudible: no microphone) come through -- I'll resend it. It was a suggestion --

MR JUSTICE GOSS: It was a suggestion? Right. No, I don't think I've seen that.

MEMBER OF THE PRESS: -- for a way through the impasse.

Would you like me to suggest it now or I can give it to you via email.

MR JUSTICE GOSS: Well, have you considered this with the --
MEMBER OF THE PRESS: The idea was that it would be circulated.

MR JUSTICE GOSS: To all? So why don't you say it now if that's all right and then we'll look at it in an email?

MEMBER OF THE PRESS: My suggestion was merely that if the issue here is one of reassurance to all parties that redactions have been made appropriately, if we could ask the team who are doing this for us to make those redactions anyway and perhaps if we sent them to you, my Lord, just to have a look at for clearance, and if you're satisfied then they can be released to the press.

I'm talking about the written documents, not the photographs.

MR JUSTICE GOSS: Right. You have got the email? Yes. All right. Well, look, everyone's heard what you've said.

I shall rise now and I'll look at the email, I'll consider it, and the respective parties will consider it. The important thing is that to my mind, if the documents are to be made available for distribution to the media, then there should just be one set of documents which is the approved set of documents -- MEMBER OF THE PRESS: Exactly so.

MR JUSTICE GOSS: -- which is what you're seeking to achieve.

MEMBER OF THE PRESS: Exactly. And with us all being on the same page (inaudible: no microphone) section 46.

MR JUSTICE GOSS: Thank you very much. It's joint responsibility from that point onwards. If anyone goes rogue, I'm not suggesting anyone would, then be it on their heads. Thank you very much. I shall be here for the rest of the day, so if anyone needs me for anything.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: I will confirm with the -- I can see the senior officer there. As far as tomorrow is concerned, if the court is not sitting tomorrow, and that will be confirmed this afternoon, I hope relatively early, then the defendant should not be brought tomorrow. All right? Because there is no point in her coming here for nothing to happen. Apparently, an email's been sent to the prison anyway. Thank you very much, we all know what the situation is.

When the format of the further version of agreed facts is available, if it could just be sent through to me, that would be very helpful. Thank you very much.

As I say, I'll be here all day. Right, thank you very much indeed.

As far as Ms Letby is concerned --

MR MYERS: We would ask for her to remain because we know Ms Santolini would wish to see her. Thank you for checking that, my Lord.

MR JUSTICE GOSS: Well, you will know what the arrangements are in relation to her so I'll just leave that with you.

Otherwise, when that is all dealt with, Ms Letby can go back. Thank you very much.

(10.43 am)

(The court adjourned until a time and date to be determined)